BRENDAN NGWA NFORBI
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a limited liability company, d/b/a SWIFT TRANSPORTATION; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) ICRAA, Civ. Code § 1786.40; (2) CCRAA, Civ. Code § 1785.20.5; (3) UCL, B&P Code § 17200; (4) Penal Code § 290.46(j) (I&B — preliminary NSOPW / registry) *[Unlimited Civil]* *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), the California Investigative Consumer Reporting Agencies Act, and the Unfair Competition Law. In September 2023, Plaintiff applied to Swift Transportation Co. of Arizona LLC for a Class A Driver position. On September 26, 2023, Swift sent a pre-adverse packet whose National Sex Offender Public Website component remained 'Processing.' On October 5, 2023, Swift sent a post-adverse letter admitting that consumer reports from Asurint, Tenstreet, DriverIQ,

FMCSA-DOT, and Equifax Work Number caused the denial. Plaintiff is informed and believes, and on that basis alleges, that Swift's decision was based in whole or in part on preliminary information from that report citing a sex-offender registry.

2. The September 26, 2023 pre-adverse packet has been decrypted. Plaintiff alleges its contents as known facts. The packet does not state 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The National Criminal search run without a sex-offender component returned Clear / No Reportable Records Found. Federal criminal returned Clear. The county criminal searches that had completed returned Clear. The National Sex Offender Public Website component remained 'Processing' on every snapshot in the packet. It never completed. It reported no hit. Clearinghouse returned Driver Not Prohibited. What the packet does contain — a Class A commercial driver's license, an April 22, 2022 improper-lane moving violation with zero points, PSP inspection history, and a CDLIS license-identity match — is not information disclosed pursuant to Penal Code section 290.46.

3. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A commercial-driver hiring decision is a purpose relating to employment.

4. Federal motor-carrier screening does not swallow this claim. The FMCSA Drug and Alcohol Clearinghouse and the Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary criminal-history or safety records is not thereby authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so. This count does not ask the Court to forbid Swift from using the Clearinghouse, PSP, CDLIS, or other federally required or permitted safety databases. It asks the Court to forbid employment use of information disclosed pursuant to Penal Code section

290.46. Federal motor-carrier regulations do not preempt that narrower claim and do not authorize Megan's Law use.

5. Plaintiff does not allege that the decrypted packet contains a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' He does allege, on information and belief, that Swift used preliminary information from the still-Processing NSOPW component — information citing a sex-offender registry, including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source was the California registry — in whole or in part in the denial. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally. The vendor adjudication log, interim NSOPW return, and decision-maker communications are exclusively in Defendants' possession. Information disclosed pursuant to Penal Code section 290.46 does not lose that character because a vendor also searched the National Sex Offender Public Website or another public sex-offender compilation. Searching a public website is not a free pass. Subdivision (j)(3)'s reference to publicly available information does not authorize employment use of Megan's Law disclosures. The prohibition is on use of information disclosed pursuant to section 290.46 for purposes relating to employment.

6. In July 2024, First Advantage prepared an employment background report on Plaintiff for United Parcel Service. That report, later lodged in federal court by UPS, identified a Department of Justice website / National Sex Offender Registry search as decisional, stated 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY,' and produced an overall INELIGIBLE result. That report is not the Swift report. It is alleged because it shows that commercial screeners could and did identify this Plaintiff through the California registry and treat that identification as dispositive of employment eligibility.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., or any other

parent, merely because it owns affiliated entities. He has sued DOES 1 through 10 for the consumer reporting agency that actually returned registry-derived information and for any Swift affiliate that was the actual employing or decision-making entity.

8. This Complaint does not plead a Tameny wrongful-termination or failure-to-hire count, an IIED count, a Fair Credit Reporting Act count, a contract or promissory-estoppel count, or a FEHA or Government Code section 12952 Fair Chance Act count. The Fair Chance reservation is not a count. Plaintiff will timely exhaust California Civil Rights Department rights and seek leave to amend if discovery shows Swift considered conviction history before any conditional offer, or used conviction history without the individualized assessment and notices section 12952 requires. The section 290.46(j) count is pleaded on information and belief that Swift used preliminary sex-offender-registry information from the in-process NSOPW component. Civil Code sections 1786.40 and 1786.50, Civil Code section 1785.20.5, and Business and Professions Code section 17200 are independent paths that do not require a completed registry hit. ICRAA and CCRAA are pleaded in the alternative so the claim survives whether the reports were investigative or ordinary consumer reports. Plaintiff does not presently plead Labor Code section 432.7 or section 1198.5. He has not alleged that any report used an arrest that did not result in a conviction, diversion, or a dismissed conviction, and he has not yet served a section 1198.5 inspection request. He preserves leave to amend if the file later supports those reserved theories.

II.

PARTIES

9. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwa Nforbi and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

10. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

11. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') is a limited liability company that does business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283. On information and belief, Swift is qualified to transact business in California and was the entity that recruited Plaintiff, ordered the reports, and made the employment decision challenged here.

12. On information and belief, Swift's designated agent for service of process in California is National Registered Agents, Inc. Plaintiff will serve Swift through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at a terminal or recruiter's phone number merely because that is how Plaintiff first heard from Swift.

13. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Swift — including, if discovery so shows, Asurint, Tenstreet, LLC, DriverIQ / Cisive, or Equifax Workforce Solutions — and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend when their identities and roles are ascertained.

14. Robin Kaufman and Matt Hutto communicated with Plaintiff as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's

message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a California resident, for work; caused consumer reports to be procured about a California resident; sent the pre-adverse and post-adverse communications to Plaintiff in California; and is, on information and belief, qualified to do business in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, he received the recruiting, screening, and adverse-action communications here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Swift used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision, not on the date of application, and not on the date Plaintiff first registered under section 290.

23. Swift's written post-adverse letter is dated October 5, 2023, at 5:09 a.m. Swift Recruiting emailed that letter the same day. Three years from October 5, 2023, is October 5, 2026. Swift Recruiting emailed a password-protected pre-adverse letter on September 26, 2023. Three years from that earlier date is September 26, 2026. This Complaint is prepared for execution on September 8, 2026, inside both dates.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. The actual-damages and discretionary enhancement authorized by section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice of subdivision (j)(4)(A) is pleaded in the alternative and is not the sole theory. He does not plead a Tameny or personal-injury count. A two-year clock from September 26 or October 5, 2023, would have closed in 2025. He has not pleaded the Fair Credit Reporting Act; the two-year FCRA discovery clock from those same 2023 letters would likewise have closed.

24A. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. The September 26 and October 5, 2023 letters described consumer reports. They did not advise that an investigative consumer report had been obtained. Plaintiff did not then possess a complete investigative-consumer-report file and did not know the NSOPW component remained Processing until the encrypted attachment was later decrypted. The face of this Complaint does not establish that discovery date. If Defendants interpose section 1786.52, the date is a fact to be proven; it does not appear from the pleading as a complete bar.

24B. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate. The UCL count is not pleaded to resurrect a time-barred statutory right. It is pleaded as an independent equitable claim for ongoing standardized screening practices and for restitution of any vested money or property Defendants acquired.

V.

COMMON FACTUAL ALLEGATIONS

A. The Swift Application

25. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 W. 3rd Street, Tulsa, Oklahoma 74103. Her stated direct line was 623-907-7414 and her address robin_kaufman@swifttrans.com.

26. That same evening, at 10:03 p.m., Matt Hutto, also identifying himself as a Swift

Driver Recruiter, emailed that he was trying to reach Plaintiff at the number Plaintiff had provided, asked him to complete the full driver application, and gave 803-564-3092 as a return number. The message used Mhutto@classarecruitinginc.com and was likewise sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. The application was for a Class A Driver position. The file does not contain the completed application, a written offer, a terminal assignment, or a rate of pay.

B. The September 25, 2023 Screen

28. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

29. Four minutes later, at 11:58 a.m., the FMCSA Office of Safety Programs emailed Plaintiff that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT# 54283) had requested access to his FMCSA Drug and Alcohol Clearinghouse record. The email warned that refusal would prohibit him from operating a commercial motor vehicle or performing other safety-sensitive functions for Swift.

30. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his FMCSA Clearinghouse result ordered by Swift Transportation Co. of Arizona LLC was available for review. The decrypted pre-adverse packet includes a Clearinghouse result of Driver Not Prohibited, with no open violations.

31. The Clearinghouse query is alleged as proof that Swift was then treating Plaintiff as a prospective commercial-driver hire and was running federally required safety screens. It is not alleged to be a Penal Code section 290.46 disclosure. Clearinghouse records concern drug and

alcohol program violations, not Megan's Law.

C. The Pre-Adverse and Post-Adverse Letters

32. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed Plaintiff a message titled 'Swift Transportation - FCRA,' addressed to Brendan Ngehsi Ngwa Nforbi, stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the password was the last four digits of his Social Security number.

33. The pre-adverse attachment has been decrypted. It is a composite screening packet, not a blank cover letter. It includes completed criminal-file components returning Clear, an NSOPW component that remained Processing on every snapshot, a Clearinghouse result of Driver Not Prohibited, an MVR, PSP inspection history, and CDLIS license-identity information. Plaintiff does not republish identifiers from that packet in this pleading. He alleges the adjudication results as known facts.

34. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed Plaintiff a second 'Swift Transportation - FCRA' message, this time attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

35. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., and addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter 'serves as notification that we have decided not to employ you or have decided to take other adverse action based in whole or in part on a consumer report received from a consumer reporting agency.'

36. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number / Equifax Workforce Solutions 'provided us with consumer reports which, in whole or in part, influenced our employment decision.' It states those agencies played no part in the decision other than providing the reports.

37. The October 5 letter says a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. It does not contain a completed NSOPW result, a California Sex Offender Registry source line, or a separate later Asurint, Tenstreet, or DriverIQ printout showing a registry hit. Civil Code sections 1786.10 and 1786.22 entitle Plaintiff to inspect the files those agencies maintain on him. Plaintiff has not yet served those inspection requests. He will.

38. The California disclosure in that packet states that Swift may order a consumer report or investigative consumer report including 'federal criminal history, state criminal history, public court records,' and names the same agencies. Criminal-history and court-record searches are not this claim. This claim is the use of information disclosed pursuant to Penal Code section 290.46.

D. Facts Supporting the Registry-Use Inference

39. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

40. Swift is a national motor carrier. On information and belief, it maintains written background-screening policies for driver applicants, contracts with the agencies named in its October 5 letter, and adjudicates hits through a centralized process rather than by ad hoc

decision of a single recruiter.

41. On information and belief, the ordinary Swift driver screen in 2023 included a search, or caused a vendor to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

42. The July 2024 First Advantage / UPS report is alleged for three limited purposes: it shows that Plaintiff's registry status was commercially retrievable for employment screening; it shows that at least one national CRA treated a California-registry source as an employment-eligibility bar for this Plaintiff; and it identifies the kind of record Swift's vendors would have been able to return. Plaintiff does not allege that First Advantage was Swift's vendor, and does not allege that UPS sent its report to Swift.

43. The NSOPW component was still Processing. A search that never completed is not a completed 'no record' result. It is also not a completed printed hit. Plaintiff is informed and believes, and on that basis alleges, that Swift or a DOE obtained, displayed, scored, or was informed of preliminary information from that in-process NSOPW component citing a sex-offender registry — including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source of record was the California registry — and used that preliminary information in whole or in part in the October 5, 2023 decision.

44. The basis for paragraph 43 is the combination of: Swift ordered an NSOPW sex-offender-website search; that component remained Processing on every snapshot in the packet sent with the pre-adverse notice; Swift then denied employment based in whole or in part on consumer reports; the completed criminal, Clearinghouse, and MVR components that are in the packet do not themselves explain a registry-based denial; Plaintiff was then listed on the California Megan's Law website; commercial screeners had already shown they could

match this Plaintiff to the California registry; and the interim NSOPW return, adjudication notes, and decision-maker communications are exclusively in Defendants' possession.

45. Swift admitted in writing that the denial was based in whole or in part on consumer reports. Civil Code section 1786.40(a) required, if an investigative consumer report had been obtained, that Swift advise Plaintiff that an investigative consumer report had been obtained and supply the name and address of the investigative consumer reporting agency. The October 5 letter stated that consumer reports from named agencies influenced the decision. It named Asurint, Tenstreet, DriverIQ, FMCSA-DOT, and Equifax Work Number and listed cities. It did not advise that an investigative consumer report had been obtained. Plaintiff does not contend that section 1786.40 required Swift to identify the decisive component, to explain the unfinished NSOPW search, or to attach a complete report. Those facts are alleged as circumstantial support for the registry-use inference and as context for the alternative CCRAA count, not as elements of section 1786.40(a). Cessation of hiring after those reports is the adverse action. The ICRAA and CCRAA counts can reach discovery even if the preliminary-registry-use inference later fails.

46. Alternative explanations — a failed Clearinghouse or drug-and-alcohol result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application — can be tested against a discrete set of records. Plaintiff will seek the application file, the Asurint, Tenstreet, and DriverIQ reports, the Clearinghouse and PSP results, adjudication notes, and communications of the decision-maker.

47. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a completed national sex-offender search returning no record. This packet is not that report. The NSOPW component never completed. A demurrer may take the

printed snapshots as what Plaintiff has pleaded them to be. It cannot convert an incomplete NSOPW into Lerma's completed no-record search, and it cannot decide — without the adjudication log — whether Swift used preliminary registry information from that in-process component. Defendants may not obtain a pleading-stage dismissal by withholding the interim NSOPW return and the decision-maker file. If production shows a completed NSOPW returning no record and no preliminary registry use, the Penal Code count will stand or fall on that file — after production, not by assuming it now.

48. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general commercial-driver assignment is not, without more, the narrow authorization that subdivision (j)(1) describes. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information. Swift has the burden of proving any other statutory authorization as a defense.

E. Knowledge, Concealment, and Harm

49. Swift knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Swift is a sophisticated interstate carrier with dedicated compliance and screening functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

50. On information and belief, Swift did not identify the registry, or any other specific ground, as the basis for the decision. The October 5 letter names agencies, not hits. That omission deprived Plaintiff of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

51. As a result of the decision, Plaintiff lost the Class A Driver opportunity, including

the wages and benefits of that position, according to proof and subject to mitigation. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use. Wages earned, if any, will be proven.

52. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

VI.

FIRST CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act
Civil Code sections 1786.40 and 1786.50 — Against Swift and User DOES
(Pleaded in the Alternative to CCRAA)

59. Plaintiff realleges paragraphs 1 through 52 and 56 through 57 to the extent consistent with this cause.

60. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Swift's request, and Swift was the user of that information before the October 5, 2023 decision. Civil Code section 1786.2 defines an investigative consumer report as one in which information on those subjects is obtained. Plaintiff alleges the products concerned those subjects. He does not invent personal interviews. If this Court concludes that interviews are required and none occurred, this ICRAA count does not apply and the CCRAA count does.

61. Civil Code section 1786.40(a) required Swift, under circumstances in which employment was denied and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address. Swift's October 5 letter names agencies and cities and states that consumer reports influenced the decision. It does not advise that an investigative consumer report had been obtained. That is the notice failure alleged. Plaintiff does not allege that section 1786.40 independently required Swift to identify the decisive component, to complete the NSOPW search, or to attach every unfinished printout.

62. The omission caused incremental harm distinct from the denial itself. Plaintiff could not timely inspect the investigative file, learn whether an investigative report rather than an ordinary consumer report had been obtained, or invoke Civil Code sections 1786.10 and 1786.22 before the decision became final. He has not yet served those inspection requests. He will. Those records, together with the adjudication log, will confirm whether an investigative report was obtained.

63. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was obtained and employment was denied without the required advice. If Defendants establish that the reports were ordinary consumer reports and not investigative, this count does not apply and the CCRAA count does.

64. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

65. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3). He reserves amendment if production shows a timely

FCRA claim and a notice or copy defect that the 2023 letters did not cure. He also reserves amendment under Civil Code section 1786.16 if production shows Swift procured an investigative report before the required standalone disclosure and written authorization. The California disclosure in the packet recites that Swift may order a consumer report or investigative consumer report. Plaintiff does not presently allege nonauthorization as an established fact.

VII.

SECOND CAUSE OF ACTION

California Consumer Credit Reporting Agencies Act
Civil Code sections 1785.20.5 and 1785.31 — Against Swift and User DOES
(Pleaded in the Alternative to ICRAA)

65A. Plaintiff realleges paragraphs 1 through 52 and 59 through 65 to the extent consistent with this cause.

65B. In the alternative, if the reports Swift obtained were ordinary consumer credit reports rather than investigative consumer reports, the California Consumer Credit Reporting Agencies Act applies. Civil Code section 1785.20.5 required Swift, before procuring a consumer credit report for employment purposes, to provide written notice that a report would be used, and, before taking adverse action based in whole or in part on the report, to provide a copy of the report and a notice of rights.

65C. Swift's October 5 letter stated that a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. On information and belief, any later-completed component used in the October 5 decision — including any completed NSOPW or other agency report that was not in that

packet — was not provided to Plaintiff before the adverse action. Plaintiff does not invent the contents of any unproduced later report.

65D. The October 5 denial was based in whole or in part on consumer reports, as Swift admitted. If those reports were consumer credit reports, the failure to furnish a complete copy of every report actually used, before the decision, violated section 1785.20.5. If they were investigative, this count does not apply and the ICRAA count does.

65E. Under Civil Code section 1785.31, Plaintiff seeks actual damages, costs, attorney's fees if later represented, and punitive damages upon proof of willfulness, according to proof.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

66. Plaintiff realleges paragraphs 1 through 65E to the extent consistent with this equitable cause.

67. Defendants engaged in unlawful practices by violating, to the extent proven, Civil Code section 1786.40, Civil Code section 1785.20.5, and Penal Code section 290.46(j)(2)(E). They engaged in unfair practices because the gravity of the harm — denial of employment on a criterion the Legislature has forbidden, or on consumer reports without the advice the statute required — outweighs any utility of taking adverse action while a sex-offender-website component remained Processing and while a complete copy of every report actually used was withheld.

68. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity, the compelled disclosure of personal identifying information for screening, and other economic losses to be proven. Injury in fact sufficient for UCL standing is not the same as recoverable restitution. He does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired through the challenged practices — including, according to proof, the value of personal information he was compelled to disclose. He does not allege that Swift holds a fund of unearned future wages.

69. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data. On information and belief, Swift continues to use the same or similar standardized screening procedures for California driver applicants. That continuing practice, not a single past denial, is the basis for UCL injunctive relief and for declaratory relief under Code of Civil Procedure section 1060. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information in California recruiting; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data, together with restitution of vested money or property actually acquired, under Business and Professions Code section 17203.

IX.

FOURTH CAUSE OF ACTION

Unauthorized Employment Use of Registry Information
Penal Code section 290.46(j) — Against All Defendants
(Pleaded on Information and Belief — Preliminary NSOPW / Registry Use)

53. Plaintiff realleges paragraphs 1 through 52, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

54. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law. Section 290.46(j)(2)(E) prohibits use of that information for purposes relating to employment unless another law authorizes the use.

55. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). The $25,000 figure is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the civil remedies the statute authorizes for unauthorized employment use of information disclosed pursuant to section 290.46, whether this Court locates those remedies in subdivision (j)(4)(A) or in another subdivision of section 290.46. He does not rest this cause on a criminal-enhancement theory.

56. On information and belief, Swift used preliminary information from the still-Processing NSOPW component citing a sex-offender registry — including information disclosed pursuant to section 290.46 concerning Plaintiff — in whole or in part in the employment decision. The user is the employer that takes the information into account in making the employment decision, not a consumer reporting agency that merely retrieves, scores, or republishes it. Plaintiff does not sue Asurint, Tenstreet, DriverIQ, or Equifax for mere furnishing. This count is directed at Swift's use. Plaintiff does not allege that the printed snapshots contain a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The use alleged is the use of preliminary registry information from that in-process component.

57. The use related directly to employment: it concerned the Swift Class A Driver

application and the October 5, 2023 decision not to employ Plaintiff. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. Defendants knew or should have known that employment use was prohibited. The use was a substantial factor in the decision and caused the loss and injury alleged.

58. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), or by whichever subdivision this Court holds supplies the civil remedy for unauthorized employment use. He does not presently allege a multi-incident pattern or practice at Swift sufficient for subdivision (j)(4)(B) preventive relief. He seeks that remedy only if discovery shows reasonable cause to believe such a pattern or practice. The damages claim under subdivision (j)(4)(A) does not depend on pattern or practice. Civil Code section 3294 punitive damages, if any, are pleaded in the alternative to the statute's exemplary damages or civil penalty for the same conduct. Plaintiff will elect. He does not seek double punitive recovery.

58A. On information and belief, Swift's human-resources and centralized driver-adjudication personnel are managing agents within the meaning of Civil Code section 3294(b): they exercise substantial discretionary authority over hiring and screening policy, not merely the power to accept or reject a single applicant. Those managing agents established, implemented, and ratified the standardized screening practices alleged. Plaintiff seeks section 3294 punitive damages only upon proof of oppression, fraud, or malice and of managing-agent authorization, ratification, or personal participation. ICRAA punitive damages, if any, rest on Civil Code section 1786.50 and do not depend on section 3294.

X.

PRESERVATION OF EVIDENCE

70. Defendants are on notice to preserve Plaintiff's complete Swift and Tenstreet application file; recruiter communications of Kaufman and Hutto; the Asurint, Tenstreet,

DriverIQ, Clearinghouse, PSP, and Equifax / Work Number orders, reports, component searches, adjudication, access, and cancellation logs; the decrypted September 26, 2023 pre-adverse packet; and policies governing Megan's Law, FCRA, ICRAA, and driver adjudication in 2023.

71. Relevant electronically stored information includes applicant-tracking and Driver Pulse audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from September 1, 2023 through December 31, 2023, and any later date on which the employment decision was recorded or revisited.

72. The July 2024 First Advantage/UPS report is relevant to retrievability and matching methodology. It is not a substitute for Swift's own file.

XI.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For CCRAA actual damages and punitive damages upon the showing required by

Civil Code section 1785.31, if that alternative count is proven;

5. For punitive damages under Civil Code section 3294 against only those Defendants for whom the statutory prerequisites are proven, pleaded in the alternative to any exemplary damages or civil penalty awarded under Penal Code section 290.46 for the same conduct, with no double recovery and no amount pleaded;

6. For restitution under Business and Professions Code section 17203 of vested money or property Defendants acquired, not unearned future wages;

7. For injunctive relief under Business and Professions Code section 17203, and for Penal Code section 290.46(j)(4)(B) preventive relief only if discovery shows reasonable cause to believe a pattern or practice;

8. For declaratory relief under Code of Civil Procedure section 1060 concerning whether Defendants' standardized California screening practices may use information disclosed pursuant to Penal Code section 290.46 for employment;

9. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

10. For prejudgment and post-judgment interest as allowed by law; and

11. For such other relief as the Court deems just and proper.

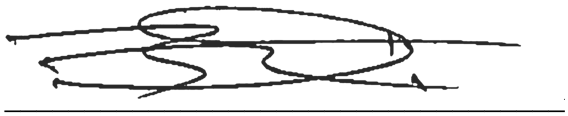
XII.

DEMAND FOR JURY TRIAL

73. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

VERIFICATION

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Signed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI